Kenya Says AI Can Help You Invent, but It Cannot Be the Inventor

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Kenya is folding its intellectual property law into a single statute, and the patent section draws a line between inventions a person made with AI and inventions AI made alone. The Kenya Intellectual Property Bill, 2026 replaces the Industrial Property Act, the Copyright Act and the Anti-Counterfeit Act, and merges the patent office, the copyright board and the anti-counterfeit authority into one regulator, the Kenya Intellectual Property Authority.

Section 18 defines an "AI-assisted invention" as one where a person supplies the "essential inventive concept" by framing the problem, overseeing the AI or interpreting its results. An "AI-generated invention" is one the AI produces "without direct human involvement in the inventive act". Section 19 then lists AI-generated inventions among the things that are not inventions, next to discoveries and business methods, so they cannot be patented at all.

For a team building with models, that turns a research workflow into a paperwork problem. Applications must name a human inventor, so if a model drafted the molecule or the architecture, someone has to show what the person actually contributed. Copyright goes the other way: computer-generated works get a 50-year term counted from the year the work was made, even though the bill defines an author as a natural person.

The bill had its first reading on 2 July, and Parliament's tracker for 15 October still shows the second reading blank. It never says how an applicant proves the human share; its 257 sections leave that detail to regulations.

Read More: Kenya National Artificial Intelligence Strategy 2025-2030

Sources:

- The Kenya Intellectual Property Bill, 2026 - Kenya Law
- National Assembly Bills Tracker - Parliament of Kenya
- Wamae and Allen: The Kenya Intellectual Property Bill, 2026
- Adams and Adams: Key takeaways from Kenya's new Intellectual Property Bill
- TechTrendsKE: KIPA Bill reaches Parliament for public scrutiny

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